

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Administration of Estates Act, 1925	15 & 16 Geo. 5. c. 23.
Adoption of Children Act, 1926	16 & 17 Geo. 5. c. 29.
Adoption of Children (Scotland) Act, 1930	20 & 21 Geo. 5. c. 37.
Children and Young Persons Act, 1933	23 & 24 Geo. 5. c. 12.
Public Health Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Public Health (London) Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 50.
Children and Young Persons (Scotland) Act, 1937	1 Edw. 8. & 1 Geo. 6. c. 37.
Adoption of Children (Regulation) Act, 1939 ...	2 & 3 Geo. 6. c. 27.
Education Act, 1944	7 & 8 Geo. 6. c. 31.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
Local Government (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 73.
Children Act, 1948	11 & 12 Geo. 6. c. 43.
Nurseries and Child-Minders Regulation Act, 1948	11 & 12 Geo. 6. c. 53.

CHAPTER 99

An Act to amend the Married Women (Maintenance)
Acts, 1895 and 1920; and for purposes connected
therewith. [16th December 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Increase in
amounts
payable under
Married
Women
(Maintenance)
Acts, 1895
and 1920.
58 & 59 Vict.
c. 39.
10 & 11 Geo. 5.
c. 63.

1.—(1) In paragraph (c) of section five and in section seven of the Summary Jurisdiction (Married Women) Act, 1895 (which empower a court of summary jurisdiction to order a husband to make weekly payments for the benefit of his wife and to vary such an order), for the words “two pounds” there shall be substituted the words “five pounds”; and in section one of the Married Women (Maintenance) Act, 1920 (which empowers a court of summary jurisdiction to order a husband to make weekly payments for the benefit of his children), for the words “ten shillings” there shall be substituted the words “thirty shillings”.

(2) Any order under section four of the Summary Jurisdiction (Married Women) Act, 1895, made before the passing of this Act may be varied, on the application of the married woman, so as to include from the date of the variation of the order

a provision for the payment of such increased sums as would have been lawful if the order had been made after the passing of this Act.

2.—(1) The power of the court to vary an order made by virtue of section one of the Married Women (Maintenance) Act, 1920, shall, notwithstanding anything in that section, include power to vary the order in accordance with the following provisions of this section. Continuance of payments for maintenance of children in certain cases.

(2) If, upon the application of the married woman, it appears to the court that a child for whose maintenance provision is made by the order is or will be engaged in a course of education or training after attaining the age of sixteen years and that it is expedient for that purpose that the payments required by the order should continue, the court may by order direct that those payments shall continue for such period after the child attains that age, not exceeding two years from the date of the order, as may be specified in the order.

(3) The period specified in an order made under the foregoing provisions of this section may from time to time be extended by a subsequent order made thereunder, but shall not be extended beyond the date when the child attains the age of twenty-one.

3.—(1) In relation to payments pursuant to any order made in accordance with paragraph (c) of section five of the Summary Jurisdiction (Married Women) Act, 1895, or section one of the Married Women (Maintenance) Act, 1920, section twenty-five of the Finance Act, 1944 (which requires that certain payments for the maintenance of a married woman or for the benefit, maintenance or education of a person under sixteen years of age which do not exceed two pounds a week or one pound a week respectively shall be made without deduction of tax) shall have effect as if in subsection (1) of that section for the words "sixteen years of age" there were substituted the words "twenty-one years of age", for the words "two pounds" there were substituted the words "five pounds" and for the words "one pound" there were substituted the words "thirty shillings". Extension of Finance Act, 1944, s. 25.
7 & 8 Geo. 6. c. 23.

(2) The references in the foregoing subsection to the Summary Jurisdiction (Married Women) Act, 1895, and the Married Women (Maintenance) Act, 1920, shall be construed as references to those Acts as amended by this Act.

4.—(1) Where an order made under the Summary Jurisdiction (Married Women) Act, 1895, or under section five of the Licensing Act, 1902, requires that any weekly sum payable to or on behalf of a married woman shall be paid through or to an officer of any court, and the payments are at any time in arrear to an amount equal to four times the said sum, that Duties of collecting officer in respect of enforcement of maintenance orders.
2 Edw. 7. c. 28.

officer shall, unless it appears to him that by reason of special circumstances it is unnecessary or inexpedient so to do, give to the married woman notice in writing stating the particulars of the arrears.

(2) Where an order made under the Summary Jurisdiction (Married Women) Act, 1895, or under section five of the Licensing Act, 1902, requires that any weekly sum payable to or on behalf of a married woman shall be paid to or through an officer of any court, and any sums payable under the order are in arrear, that officer shall, if the married woman so requests and unless it appears to him that it is unreasonable in the circumstances so to do, proceed in his name for the recovery of those sums; but the married woman at whose request the proceedings are taken shall have the same liability for all costs properly incurred in or about the proceedings as if the proceedings had been taken by her.

(3) Nothing in the last foregoing subsection shall affect any right of a married woman to proceed in her own name for the recovery of sums payable under any such order as is mentioned in that subsection.

Access to
children.

5. Where provision is made by an order under section five of the Summary Jurisdiction (Married Women) Act, 1895, or section five of the Licensing Act, 1902, for the custody of any children of the marriage, the order may make such provision as the court thinks fit for access to those children by the husband or the wife as the case may be.

Extension of
jurisdiction of
court.

6. In section four of the Summary Jurisdiction (Married Women) Act, 1895, after the words "or in which the cause of complaint shall have wholly or partially arisen" there shall be inserted the words "or in which the married woman or her husband ordinarily resides".

Short title
and citation.

7. This Act may be cited as the Married Women (Maintenance) Act, 1949, and the Summary Jurisdiction (Separation and Maintenance) Acts, 1895 to 1925 and this Act may be cited together as the Summary Jurisdiction (Separation and Maintenance) Acts, 1895 to 1949.
